

Circular No. 15/2023-Customs

F. No.528/36/2016-STO.(TU)
Government of India
Ministry of Finance
Department of Revenue
(Central Board of Indirect Taxes & Customs)

North Block, New Delhi

Date: 07th June, 2023

To,

All Principal Chief Commissioners/ Chief Commissioners of Customs/ Customs (Preventive),
All Principal Chief Commissioners/ Chief Commissioners of Customs & Central tax,
All Principal Commissioners/ Commissioners of Customs/ Customs (Preventive),
All Principal Director Generals/ Director Generals under CBIC.

Madam/Sir,

Subject: Mandatory additional qualifiers in import/export declarations in respect of certain products wef 1.7.2023 -reg

Reference is drawn to the Circular 55/2020-Customs dated 17.12.2020 wherein importers were advised to voluntarily declare the complete description of imported goods and provide certain additional parameters for imported items such as scientific names, IUPAC names, brand name etc., as applicable, to aid reducing queries and improve the efficiency of assessment.

2. The matter was further reviewed in consultation with the Dept. of Chemicals and Petrochemicals, Ministry of AYUSH and the Directorate General of Foreign Trade (DGFT) and it is noted that more complete details of the products in import/export declarations can lead to effective avoidance of queries, enhancing efficiency in assessment and facilitation, avoid making references to technical agencies and addressing basic causes for delays in clearance, apart from better aiding policy-making.

3. Accordingly, in consultation with the concerned line ministries, the following mandatory additional qualifiers are being added for purposes of import or export declarations, as the case may be, -

Additional qualifiers in respect of imports:

4.1 In consultation with the Department of Chemicals and Petrochemicals, and in terms of the Bill of Entry (Electronic Integrated Declaration and Paperless Processing) Regulations

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2018 , it has been decided to enable the following additional qualifiers as mandatory from the beginning, that is, the time of filing import declarations itself :

- a. the declaration of IUPAC name and CAS number of the constituent chemicals, for imports under the chapters 28, 29, 32, 38 and 39 of the Customs Tariff Act, 1975.

4.2 These additional qualifiers shall be mandatory for imports under the said chapters for all bills of entry filed on or after 01.07.2023, in the manner mentioned in the Annexure-1 to this Circular. These fields shall be in addition to the existing declaration being made by importers.

Additional qualifiers in respect of exports:

5.1 In consultation with the Ministry of AYUSH and DGFT; and in terms of Shipping Bill (Electronic Integrated Declaration and Paperless Processing) Regulations 2019, it has been decided to enable the following additional qualifiers as mandatory from the beginning, that is, the time of filing export declarations itself :

- a. the declaration of the name of the medicinal plant, for exports of parts of plants under chapter 12;
- b. the declaration of the name of the formulation, for exports of formulations of different streams of medicine under chapter 30;
- c. the declaration of the surface material that comes into contact with the chemical, for exports of various products under chapter 84.

5.2 These additional qualifiers shall be mandatory for exports under the specific CTHs of the said chapters for all Shipping bills filed on or after 01.07.2023, in the manner mentioned in the Annexure-2 to this Circular. These fields shall be in addition to the existing declaration being made by exporters.

6. Suitable Public Notice etc may kindly be issued for guidance. Any difficulties faced or doubts arising in the implementation of this Circular may please be brought to the notice of Board.

7. Hindi version follows.



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ANNEXURE-1 (IMPORTS)**All CTHs of CHAPTER-28, 29, 32, 38, 39**

Field Description in Bill of Entry	Constituent element name	Constituent element code
	IUPAC name of the chemical	CAS Number
Constituent 1		
Constituent 2		
Constituent 3		
Constituent 4		